

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
MOSLEH ALMAWERI,

Plaintiff,

Plaintiff designates County Bronx as
the place of trial

-against-

The basis of the venue is where the
tort arose

CITY OF NEW YORK, PAUL NAUGHTON in his
individual and official capacity as a New York City police
officer, DONALD SEHL in his individual and official
capacity as a New York City police officer and JOHN OR
JANE DOE 1-10, in their individual and official capacity as
New York City police officers,

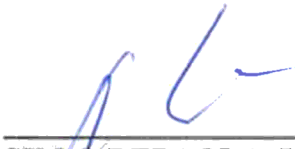
SUMMONS

Defendants.
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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 28, 2020



SIM & DEPAOLA, LLP

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PAUL NAUGHTON
Shield #10647, Tax ID #960998
42nd Precinct 830 Washington Ave,
The Bronx, NY 10451

DONALD SEHL
Shield #1527, Tax ID #951232
42nd Precinct 830 Washington Ave,
The Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MOSLEH ALMAWERI,

Plaintiff,

-against-

CITY OF NEW YORK, PAUL NAUGHTON in his individual and official capacity as a New York City police officer, DONALD SEHL in his individual and official capacity as a New York City police officer and JOHN OR JANE DOE 1-10, in their individual and official capacity as New York City police officers,

Defendants.

X

Index No.:

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VERIFIED COMPLAINT

X

Plaintiff, Mosleh Alkaweri, by his attorneys, Sim & DePaola, LLP, for his complaint against the above Defendants, alleges as follows:

1. The claim arises from a February 22, 2019 incident that occurred at Deli Grocery located at 3214 Third Avenue, Bronx, New York, where Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a result of Defendants unlawful actions Plaintiff was deprived of his liberty and suffered physical injuries. Plaintiff was wrongfully incarcerated for over seventeen (17) hours before being released from police custody. The Bronx County District Attorney's Office declined to prosecute on February 22, 2019.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Mosleh Almaweri resides at 555 West 151 Street Apartment 62A, New York, New York, 10031
4. The Defendant City of New York (or “Defendant City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline, retention, and conduct of all NYPD personnel, including corrections officers and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Paul Naughton was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant was, at the times relevant herein, a police officer under Shield #10647, Tax ID #960998 in the 42nd Precinct 830 Washington Avenue, The Bronx, New York 10451. Defendant is being sued in his individual and official capacities.
8. Defendant Donald Sehl was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant was, at the times relevant herein, a police officer under Shield #1527, Tax ID #951232 in the 42nd Precinct 830 Washington Avenue,

The Bronx, New York 10451. Defendant is being sued in his individual and official capacities.

9. At all times relevant herein, Defendants John or Jane Doe 1-10 were police officers, supervisors, policy makers and/or officials employed by the NYPD at this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1-10, as such knowledge is within the exclusive knowledge and possession of Defendants.
10. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD Defendants John or Jane Doe 1-10, are being sued in their individual and official capacities.
11. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On February 22, 2019 at approximately 1:30 A.M. Plaintiff working making sandwiches at Deli Grocery located at 3214 Third Avenue, County of Bronx, State of New York.
17. An argument broke out between a customer, later identified as Gregory Bright (“Mr. Bright”) and the cashier about whether the customer had paid yet. A second customer intervened in the argument and a physical fight broke out between the second customer and Mr. Bright.
18. Mr. Bright showed signs of intoxication at the time of this incident.
19. The second customer grabbed a broom from behind the deli’s counter and struck Mr. Bright in the arm. The Cashier used a phone to call police.
20. Plaintiff came around the counter and attempted to stop the fight between the second customer and Mr. Bright.
21. Plaintiff did not strike or touch Mr. Bright.
22. Police arrived at the deli, there were approximately four (4) officers in total including Police Officer Paul Naughton (P.O. Naughton).
23. P.O. Naughton demanded that Plaintiff get access to the security camera footage., Plaintiff informed P.O. Naughton that only the owner had access to the security camera footage and that he was unable to come to the deli at that time but that he would get the footage tomorrow. P.O. Naughton threatened to arrest Plaintiff if he did not get access to the security camera footage at that instant.
24. Mr. Bright, while in an intoxicated state, incorrectly identified Plaintiff as the person he had been fighting with.

25. P.O. Naughton unlawfully and without probable cause arrested Plaintiff, despite Plaintiff and the other witnesses at the scene telling P.O. Naughton that it was another man whom had fought with Mr. Bright.
26. Plaintiff was rear handcuffed, with handcuffs placed on excessively tight. The handcuffs caused severe pain and bruising.
27. Plaintiff and other witnesses protested Plaintiffs innocence during the arrest, P.O. Naughton said he didn't care and that Plaintiff was being arrested because he wouldn't show the security camera footage.
28. Plaintiff was the only one arrested in relation to this incident.
29. Plaintiff was taken to the 42nd Precinct located at 830 Washington Avenue, County of The Bronx, State of New York. At the precinct Plaintiff was strip searched, finger printed, eye scanned and then placed in a cell.
30. Plaintiff is a diabetic and requires food at regular intervals to maintain his blood sugar levels. Plaintiff informed police of this and they refused to give him food or water for several hours.
31. At approximately 3:00 A.M. the owner of the deli arrived at the 42nd precinct with the security camera footage. The deli owner tried to show it to P.O. Naughton and explained that it would exonerate Plaintiff but P.O. Naughton refused to view it.
32. After five (5) hours of unlawful confinement at the 42nd precinct Plaintiff was transferred to central booking. Plaintiff was released at 6:30 P.M. after the Bronx County District Attorney declined to prosecute Plaintiff.
33. At no point did the defendants, including P.O. Naughton and P.O. Sehl ever observe Plaintiff commit any crime or offense before they unlawfully arrested Plaintiff.

34. It was unlawful and unreasonable for Defendants including P.O. Naughton and P.O. Sehl to arrest Plaintiff when several witnesses stated that Plaintiff was not involved with the fight. It was unlawful and unreasonable to arrest Plaintiff because he was unable to show the security camera footage to police.
35. Plaintiff had not broken any laws nor local ordinances, nor had he harmed or touched Mr. Bright in anyway.
36. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause and have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
37. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest Plaintiff, as Plaintiff was trying to stop a fight at his place of employment and attempting to help police with an investigation.
38. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.
39. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers

were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Plaintiff.

40. At all times relevant hereto, Defendants, including defendants P.O. Naughton and P.O. Sehl acted maliciously and with intent to injure Plaintiff.

41. At all times relevant hereto, defendants, including defendants P.O. Naughton and P.O. Sehl were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.

42. At all times relevant hereto, Defendants, including defendants P.O. Naughton and P.O. Sehl engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

43. As a direct and proximate result of the acts of Defendants including P.O. Naughton and P.O. Sehl, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

44. The above paragraphs are here incorporated by reference as though fully set forth.

45. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

46. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

47. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

48. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

49. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

50. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

51. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

52. The above paragraphs are here incorporated by reference as though fully set forth.

53. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

54. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

55. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

56. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

57. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

58. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth.

60. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

61. Plaintiff was conscious of his confinement.

62. Plaintiff did not consent to his confinement.

63. Plaintiff's arrest and false imprisonment was not otherwise privileged.

64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

66. The above paragraphs are here incorporated by reference as though fully set forth.

67. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

68. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

69. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

70. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

73. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.

74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

76. The above paragraphs are here incorporated by reference as though fully set forth.

77. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

78. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

79. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

80. The above paragraphs are here incorporated by reference as though fully set forth.

81. Defendants initiated the prosecution against Plaintiff.

82. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

83. Defendants acted with malice, which may be inferred in the absence of probable cause.

84. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

85. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth.
88. Defendants initiated the prosecution against Plaintiff.
89. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
90. Defendants acted with malice, which may be inferred in the absence of probable cause.
91. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
92. Accordingly, Defendants violated Plaintiff's Fourteenth Amendment rights.
93. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth.
95. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.
96. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
97. Defendants intended to inflict substantial harm upon plaintiff.
98. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.
99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

101. The above paragraphs are here incorporated by reference as though fully set forth.

102. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

103. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.

104. Defendants intended to inflict substantial harm upon plaintiff.

105. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

106. Defendants' actions deprived plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without the due process of law.

107. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION
Denial of Right to Fair Trial Under
New York State Law

108. The above paragraphs are here incorporated by reference as though fully set forth herein.

109. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

110. Defendants forwarded said false information to the District Attorney's Office.

111. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

112. Accordingly, defendants violated plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

115. The above paragraphs are here incorporated by reference as though fully set forth.

116. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

117. Defendants forwarded said false information to the District Attorney's Office.

118. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

119. Accordingly, defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under

New York State law

121. The above paragraphs are here incorporated by reference as though fully set forth herein.
122. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.
123. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.
124. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.
125. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
126. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
127. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.
128. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
129. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
130. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

131. The above paragraphs are here incorporated by reference as though fully set forth herein.
132. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.
133. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

134. Defendants also selectively treated Plaintiff in comparison to others similarly situated.

135. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

136. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

137. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

138. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

139. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

140. The above paragraphs are here incorporated by reference as though fully set forth herein.

141. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.

142. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

143. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.

144. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

145. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

146. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

147. The above paragraphs are here incorporated by reference as though fully set forth herein.

148. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

149. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

150. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

151. The above paragraphs are here incorporated by reference as though fully set forth herein.

152. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

153. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

154. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

155. The above paragraphs are here incorporated by reference as though fully set forth.

156. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

157. Defendant City breached those duties of care.

158. Defendant City placed defendants in a position where they could inflict foreseeable harm.

159. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

160. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

161. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

162. The above paragraphs are here incorporated by reference as though fully set forth.

163. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

164. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

165. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

166. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

167. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

168. Defendant City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

169. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- u) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
January 28, 2020



SIM & DEPAOLA, LLP
Attorneys for Plaintiff
4240 Bell Blvd., Suite 500
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Peter Sim**, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 28, 2020



PETER SIM, ESQ.

Index No.:

Purchased:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MOSLEH ALMAWERI

Plaintiff,

-against-

CITY OF NEW YORK, PAUL NAUGHTON in his individual and official capacity as a New York City police officer, DONALD SEHL in his individual and official capacity as a New York City police officer and JOHN OR JANE DOE 1-10, in their individual and official capacity as New York City police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

Attorney for Plaintiff(s)

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-0400

To: COMPTROLLER OF THE CITY OF NEW YORK and

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for